

Restrictions on Land Ownership by Foreigners in Selected Jurisdictions

Staff of the Global Legal Research Directorate

I. Introduction

This report, prepared by the research staff of the Law Library of Congress, surveys 39 jurisdictions regarding whether, and if so how, they restrict ownership of land by foreigners.¹ The jurisdictions surveyed were among those with the highest gross domestic product according to 2021 World Bank data, selected to ensure broadly representative coverage.²

We identified 10 countries that do not restrict land ownership by foreigners: **Belgium, France, Germany, Ireland, Japan, the Netherlands, Norway, Portugal, Sweden, and the United Kingdom.**

We found that the following countries do not permit foreign ownership of land, although exceptions may apply in some cases or other rights to land may be acquired: **China, Indonesia, Nigeria, Philippines, and Thailand.**

Among the other jurisdictions surveyed, some have restrictions that apply to different types of land, including agricultural, residential, and commercial land. Other types of restriction are based on the location of the land, such as near the border or military establishments. Some jurisdictions restrict particular categories of foreigners from land ownership. Some require special permission or approval for foreigners before they can acquire land.

Ownership of agricultural land by foreigners is restricted by some provinces of **Canada**, and by **Egypt, India** (restricted for diplomatic personnel, nonresidents of Indian origin and nonresident citizens without registration), **Iran, Poland** (permit required), and **Russia. Argentina, Brazil, and Turkey** restrict ownership of rural or local land to a percentage of the total land of the local jurisdiction.

Article XVII of the General Agreement on Trade in Services (GATS) obligates members to provide national treatment to other members, i.e., “treatment no less favourable than that it accords to its own.”³ If land ownership restrictions result in less favorable treatment of foreigners, GATS

¹ The surveyed jurisdictions are **Argentina, Australia, Austria, Belgium, Brazil, Canada, Chile, China, Egypt, Finland, Germany, Greece, India, Indonesia, Iran, Ireland, Israel, Italy, Japan, Mexico, the Netherlands, New Zealand, Nigeria, Norway, Philippines, Poland, Portugal, Russia, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Taiwan, Thailand, Turkey, United Arab Emirates, and the United Kingdom.**

² World Bank Databank, *Gross Domestic Product 2021* (Jan. 15, 2023), <https://perma.cc/GP7Y-Z8K8>.

³ General Agreement on Trade in Services (GATS), Apr. 15, 1994, Marrakesh Agreement Establishing the World Trade Organization, Annex 1B, art. XVII, 1869 U.N.T.S. 183, 33 I.L.M. 1167 (1994), <https://perma.cc/Z89Y-SEVS>.